



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

September 9, 2026

Via email: kevin.wheeler@lw.com

Kevin C. Wheeler, Esq.

Latham & Watkins LLP

555 11th St. NW, Suite 1000

Washington, D.C. 20004-1304

Re: Complaint Filed by Netlist, Inc. Concerning *Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Components Thereof (III)* (Docket No. 3930)

Dear Mr. Wheeler:

Under Commission Rule 210.10(a)(1), the Commission may extend the deadline for voting on institution of an investigation when “[e]xceptional circumstances preclude adherence to a 30-day deadline.” 19 C.F.R. § 210.10(a)(1)(i). Commission Rule 210.10(a)(2) further provides that “[i]f exceptional circumstances preclude Commission adherence for the 30-day deadline for determining whether to institute an investigation on the basis of the complaint, the determination will be made as soon after that deadline as possible.” 19 C.F.R. § 210.10(a)(2).

Due to exceptional circumstances, the Commission requires additional time to consider its decision whether to institute an investigation based on the Complaint and the public interest comments. Thus, the Commission has determined to postpone the vote on institution until September 14, 2026.

Sincerely,

A handwritten signature in black ink, appearing to read "Lisa R. Barton", is enclosed in a rectangular box.

Lisa R. Barton
Secretary to the Commission